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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S BENCH BRIEF IN
SUPPORT OF EX PARTE
APPLICATION TO STAY MOTION TO
STRIKE AND IN AID OF COURT'S
EARLY STUDY OF JUDGE'S
COURTESY BINDER**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f), (g); 1005(b);
Cal. Rules of Court, rules 3.1202(c), 3.1203(a), 3.1113,
3.1312; LRSF 2.7(B), 9.0(A))

Ex Parte Hearing:

Date: April 24, 2026

Time: 11:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

I. Introduction and Request to the Court

Plaintiff respectfully submits this short bench brief as a courtesy roadmap to the judge’s chambers binder and as a focused orientation to the narrow relief Plaintiff will ask the Court to enter on the ex parte calendar on April 24, 2026. The brief is not a substitute for, and does not supplement, the full merits submission the Court will consider at the April 30, 2026 hearing on Plaintiff’s Motion for Leave to File Second Amended Complaint (the “MFL-SAC”). It is a five-page map of a fourteen-tab binder, a concise statement of why the narrow relief requested is the minimum-intrusion order, and an early flag that the 802 track contemplates a progressive amendment pathway (SAC followed by a Third Amended Complaint) that draws on the same California Supreme Court line of liberal-amendment authority.

The ex parte request is narrow: stay the May 19, 2026 MTS hearing until the Court has ruled on the April 30, 2026 MFL-SAC. If leave to amend is denied, the MTS proceeds on its merits on a reset calendar. If leave to amend is granted, Defendants retain the full remedy the Legislature created for exactly this posture — a renewed special motion within 60 days of the operative (amended) pleading under Code of Civil Procedure section 425.16, subdivision (f).

II. Roadmap of the Judge’s Courtesy Binder (Dept. 302 — 14 Tabs)

The chambers binder delivered to Dept. 302 on the morning of April 24, 2026 is a single three-ring volume with a TOC cover sheet and fourteen numbered tab dividers. The binder’s early tabs isolate today’s ex parte relief; the middle tabs support the April 30 MFL-SAC hearing; the back tabs carry the complete service record.

Tab	Document	Purpose for the Bench
1	Oral-Argument Outline (ex parte)	3-minute script + authorities table for today’s argument
2	Late-Lodgment Cover — Reply ISO MFL-SAC (802)	Transmittal cover for the re-lodged reply papers under CRC 3.1113/3.1300(d)

Tab	Document	Purpose for the Bench
3	POS-050 — Reply (802)	Proof of electronic service of the Reply ISO MFL-SAC
4	Notice of Filing — Separate Statement (CRC 3.1345)	Housekeeping for separate discovery motion (May 18)
5	Notice of Re-Presentation — SAC Support (802)	Consolidated SAC-leave support packet for the April 30 hearing
6	Plaintiff’s Evidentiary Objections to O’Connell Decl. (802)	CRC 3.1354 objections to the sole defense declaration opposing amendment
7	Consolidated POS-050 — April 22, 2026 Service (802)	Proves Apr. 22 evening electronic service on all defense counsel of record (exceeds CRC 3.1203(a) 24-hour floor)
8	Reply ISO MFL-SAC — April 30, 2026 (802)	Full merits reply on the liberal-amendment showing
9	[Proposed] Order Staying MTS (802)	The single signable order implementing the ex parte relief — this is the Court’s minimum-intrusion path
10	Separate Statement ISO MFL-SAC (802)	Merits companion to Tab 8
11	Notice of Ruling Template (802)	Pre-drafted CRC 3.1312 notice for prompt service if the Court signs Tab 9

Tab	Document	Purpose for the Bench
12	POS-050 Apr. 24 Filing-Service (802)	Proof of today’s morning filing-service
13	POS-050 Apr. 24 Reply-Service (802)	Proof of today’s reply-companion service
14	POS-050 Apr. 24 Supplemental-Service (802)	Proof of today’s supplemental (late-lodged) service

The Court’s attention at the ex parte hearing is respectfully directed to **Tabs 1, 7, 9, and 11** — the oral-argument outline, proof of service, the proposed order, and the companion notice-of-ruling template. The balance of the binder is provided as early courtesy lodging for the April 30, 2026 hearing.

III. Procedural Posture

- **December 23, 2025** — Complaint filed; Plaintiff granted IFP fee waiver the same day (Gov. Code § 68634(e)).
- **February 25, 2026** — First Amended Complaint (“FAC”) filed.
- **Early April 2026** — Plaintiff noticed Motion for Leave to File Second Amended Complaint for **April 30, 2026**, Dept. 302.
- **April 22, 2026 (Wed.)** — Defendants filed Motion to Strike the FAC, set **May 19, 2026**, Dept. 302.
- **April 22, 2026 (Wed. evening)** — Plaintiff served and lodged the present ex parte application (CRC 3.1202, 3.1203, 3.1204).
- **April 24, 2026 (Fri.)** — Ex parte hearing at 11:00 a.m.
- **Anticipated TAC pathway (802 track).** Plaintiff has signaled to Defendants and to the Court that the 802 matter contemplates a progressive amendment pathway: the proposed SAC cures the defects defendants identify as to the FAC, and a narrowly targeted Third Amended Complaint may follow to capture discovery-produced facts. The California Supreme Court’s

liberal-amendment rule (Section V, below) is content-neutral as to second-versus-third amendments; it is a test of prejudice, not of iteration count.

IV. Why the Court Should Hear This Ex Parte — Shortened-Time Analysis

CRC 3.1202(c) requires an “affirmative factual showing” of irreparable injury, immediate danger, or a “statutory basis for granting the relief ex parte.” Plaintiff’s showing rests on all three doors, but chiefly on the third: sections 473(a)(1) and 576 vest the Court with discretion to manage its own calendar “at any stage of an action” and “in furtherance of justice.” Allowing the May 19 MTS to proceed on notice against a pleading that Plaintiff has already moved to supersede would force a duplicative law-and-motion calendar event on a pleading that may “cease to perform any function as a pleading” on April 30. Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884. That is the textbook irreparable-injury/judicial-economy showing CRC 3.1202(c) contemplates. CRC 3.1203(a)’s 24-hour notice floor is more than satisfied: ex parte papers were served the evening of April 22 for an April 24 morning hearing (approximately 36 hours’ notice).

V. The California Supreme Court Rule: Leave to Amend Must Be “Liberally Permitted”

The California Supreme Court has treated leave to amend as an instrument of substantial justice for more than eighty years. Four authorities crystallize the rule, and a fifth — squarely applicable to the 802 track’s progressive-amendment posture — confirms that the rule applies even on the eve of trial and across successive amendments:

1. **Klopstock v. Superior Court** (1941) 17 Cal.2d 13, 19–20 — “[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings.” Leave should be granted liberally where the proposed amendment rests on the same “general set of facts.” Id. at pp. 19–20.
2. **Mesler v. Bragg Management Co.** (1985) 39 Cal.3d 290, 296–297 — The policy “is one of great liberality at any stage of the proceeding”; “amendments will be allowed with great liberality to do justice and no abuse of discretion is shown” absent prejudice traceable to the delay itself.
3. **Kittredge Sports Co. v. Superior Court** (1989) 213 Cal.App.3d 1045, 1047 — Denial of leave to amend is an abuse of discretion where the amendment is timely, the grounds are

sufficient, and no real prejudice results.

4. **Morgan v. Superior Court** (1959) 172 Cal.App.2d 527, 530 — “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.”

5. **Hirsa v. Superior Court** (1981) 118 Cal.App.3d 486, 488–489 — Courts are required to apply the liberal-amendment policy “even on the eve of trial”; a court that denies leave where no prejudice is shown commits reversible error. Hirsa answers any concern that the progressive SAC-then-TAC pathway announced on the 802 track is itself a disqualifying posture: the rule is prejudice-driven, not iteration-count-driven.

Plaintiff’s proposed SAC (i) arises from the same general set of facts as the FAC, (ii) is timely (moved well before any trial setting), and (iii) threatens no prejudice that runs from the delay in amendment — only the ordinary operational consequence that Foreman & Clark attaches to any amended pleading. A future TAC, if any, will be evaluated under the same prejudice-driven test.

VI. Supersession and Mootness

Once the Court grants leave to file the SAC, the FAC “ceases to perform any function as a pleading.” Foreman & Clark, *supra*, 3 Cal.3d at p. 884. The May 19 MTS is directed at the FAC. On April 30, that target either survives (in which case the MTS is heard on the merits on a reset date) or disappears by operation of law (in which case the MTS is moot). Staying the MTS for roughly three weeks converts a coin-flip into a deterministic calendar. It does not enlarge or shrink any substantive right.

VII. Defense’s Rights Are Fully Preserved — Section 425.16(f), (g)

Subdivision (f). The Legislature expressly contemplated post-motion amendment. Section 425.16(f) permits a defendant to file a renewed special motion to strike **within 60 days** of the amended pleading, “or, in the court’s discretion, at any later time upon terms it deems proper.” A stay pending SAC-leave does not deprive Defendants of anything; it channels them into the exact statutory remedy the Legislature created for this posture. The same remedy applies to any subsequent TAC.

Subdivision (g). The § 425.16(g) discovery stay reaches only discovery “relating to the motion.” It is a narrow gatekeeping rule; nothing in (g) speaks to pleading-amendment motions under §§

1 473(a)(1) and 576. The ex parte stay requested does not touch the (g) discovery stay — it concerns
2 only the May 19 MTS calendar.

3 **VIII. Judicial Expediency and Court Resources**

4 The stay saves one full law-and-motion calendar slot in Dept. 302 on May 19. It also avoids du-
5 plicative briefing — reply and opposition papers on an MTS that the April 30 ruling may render
6 moot — and removes the risk of inconsistent rulings across the two hearings. Where the same
7 Court, on the same bench, will decide the antecedent pleading question three weeks earlier, or-
8 dering the dependent hearing to stand down is the paradigmatic exercise of the §§ 473(a)(1)/576
9 calendar-management discretion that CRC 3.1202(c) endorses on an ex parte showing of judicial
10 economy.

11 **IX. Minimum-Intrusion Proposed Disposition**

12 The signable order is at **Tab 9** of the chambers binder: “[Proposed] Order Staying Motion to Strike
13 Pending Ruling on Motion for Leave to File Second Amended Complaint.” It does three things
14 and nothing more:

- 15 1. Stays the May 19, 2026 MTS hearing in Dept. 302, to be re-set (if at all) within 30 days after
16 the Court’s ruling on the April 30, 2026 MFL-SAC;
- 17 2. Preserves Defendants’ § 425.16(f) 60-day renewed-motion remedy as-if the MTS had been
18 denied without prejudice on procedural grounds;
- 19 3. Confirms that the § 425.16(g) discovery stay is not affected by this order.

20 If the Court prefers to narrow or broaden any of those three operative paragraphs, Plaintiff stands
21 ready to make interlineations on the bench.

22 **X. Conclusion**

23 Plaintiff respectfully asks the Court to sign the [Proposed] Order at Tab 9 staying the May 19,
24 2026 MTS pending the Court’s ruling on the April 30, 2026 MFL-SAC. The order is narrow, it is
25 supported by a California Supreme Court line of authority that has commanded liberal amendment
26 since 1941 (and applies with equal force to successive amendments on the eve of trial, Hirsa,
27 supra), and it is the path that conserves this Court’s calendar without prejudicing any party.

Dated: April 24, 2026

A handwritten signature in blue ink, appearing to read 'Francisco', with a stylized flourish at the end.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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